

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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ISAAC OKOLI, MILLYCENT ATUEGWE,
VICTORIA OKOLI, G.O. (an infant whose parents and legal guardians are joint petitioners Isaac Okoli and Millycent Atuegwe), S.O. (an infant whose parents and legal guardians are joint petitioners Isaac Okoli and Millycent Atuegwe), and P.O. (an infant whose parents and legal guardians are joint petitioners Isaac Okoli and Millycent Atuegwe),

Index #:

PETITION

Petitioners,

against

CITY OF NEW YORK, NYPD OFFICER TIMOTHY TERRILLON, Tax No. 952286, NYPD SERGEANT THOMAS GAGLIARDI, Tax No. 930188, NYPD DETECTIVE SHAWN HAYES, Tax 94770, JOHN AND JANE DOE POLICE OFFICERS 1 to 9,

Respondents.

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REHAN NAZRALI ESQ and RYAN LOZAR ESQ, being attorneys at law, duly admitted to practice in the Courts of the State of New York, upon the affirmation of Rehan Nazrali Esq state the following to be true under the penalties of perjury: I am the owner of the law offices of Rehan Nazrali Esq and together with the Law Offices of Ryan Lozar Esq, are the attorneys for the petitioner and proposed claimants in the within matter.

1. That I am the attorney for Petitioners, and as such am fully familiar with the facts and circumstances of this action.

2. That I submit this Affirmation in support of the within Petition requesting that the previously served Notice of Claim be deemed timely.

RELEVANT FACTS

3. Petitioner Isaac Okoli and Petitioner Millycent Atuegwe have been married for more than two decades. Petitioners Victoria Okoli, G.O., S.O. and P.O. are their children together. Petitioners all live as a family together at 22-29 Dix Avenue, Apt. 1A, in Queens, New York.
4. On December 12, 2017, at Petitioners' family home, Respondent Officers violated Respondents' Fourth Amendment rights when Respondent Officers unlawfully entered and searched Petitioners' home without cause.

Approximately nine of the Respondent Officers on the scene at some point during the incident were male, and two were female.
5. During Respondents' violation of Petitioners' Fourth Amendment rights as described herein, Respondent Officers used excessive force upon certain Petitioners, causing them physical and/or emotional injury in the process and requiring at least one minor Petitioner to seek counseling.
6. Certain Respondents, whose identities are known to Respondents due to investigation begun within thirty (30) days of the incident as described herein, noted aloud during the unprivileged December 12, 2017, search of Petitioners' home that they had no cause to do so, and that whatever claimed intelligence they believed they had for the same was faulty. Among other remarks to this effect, Respondents stated aloud that Petitioners' names were evidence of the

error (insofar as Respondents were seeking some individual otherwise named), that Petitioners physical attributes and ages were evidence of the error (insofar as Respondents were seeking some individual whose identifying characteristics did not match any of the Petitioners), that Respondents found no contraband on the premises of Petitioners' home as they expected, and more.

7. In order to cover for the admitted error in entering and searching Petitioners' home without cause, certain Respondents left then returned to Petitioners' home and arrested Petitioner Isaac Okoli, the 59-year-old patriarch of the family.
8. Respondents then transported Petitioner Isaac Okoli to the precinct where they fabricated evidence and made false statements that they had found him in possession of a controlled substance. This was not true, yet Respondents forwarded the fabricated evidence and false statements to prosecutors and commenced criminal proceedings against Petitioner Isaac Okoli. This was done with malice and to obfuscate Respondents' admitted error in the unprivileged entry and search of Petitioners' home.
9. The Queens County District Attorney's Office dismissed the single arrest charge against Petitioner Isaac Okoli prior to his arraignment on that charge. This occurred approximately one month after December 12, 2017. See Exhibit 1 (true and accurate copy of the DA's Office U.S. mail alerting Petitioner Isaac Okoli of the dismissal of the December 12, 2017, DAT possession arrest charge); Exhibit 2 (true and accurate copy of the December 12, 2017, DAT served upon Petitioner Isaac Okoli based upon Respondents' fabrication of evidence).

10. On January 3, 2018, less than thirty (30) days from the date of the December 12, 2017, incident that is the subject of this Petition and Petitioners' related Notice of Claim, Petitioners filed CCRB complaint number 201800067 challenging the December 12, 2017, incident, and asking the City Defendant to investigate. See Exhibit 3 at 2 (true and accurate copy of Petitioners' CCRB complaint No. 201800067 report from the CCRB complaint-tracking Web site).
11. On January 3, 2018, less than thirty (30) days from December 12, 2017, CCRB did initiate an investigation. On January 9, 2018, less than thirty (30) days from December 12, 2017, CCRB requested that NYPD provide CCRB with related records. See Exhibit 3 at 2 (true and accurate copy of Petitioners' CCRB complaint No. 201800067 report from the CCRB complaint-tracking Web site).
12. On January 25, 2018, less than forty-five (45) days from December 12, 2017, CCRB investigators interviewed Petitioners Isaac Okoli and Millycent Aguwe regarding the December 12, 2017, incident. Exhibit 3 at 2.
13. Within ninety (90) days of the incident having occurred, a Respondent Officer telephoned Petitioner Victoria Okoli to express regret for the incident and to verify her well-being despite the fact that she was held at gunpoint during it.
14. Respondents were in possession, custody and control of all relevant and material municipality law-enforcement records relating to the incident during the ninety (90) day period during which they knew—as demonstrated by their own statements, actions and CCRB notice of complaint and investigation—that

Petitioners complained about and requested investigation into the incident's lawfulness.

15. CCRB investigators subsequently requested additional NYPD records regarding the incident, interviewed an involved Respondent and/or NYPD officer, requested still more NYPD records, and more. See Exhibit 3 at 1.
16. At this writing, CCRB investigators continue their investigation into the December 12, 2017, incident, which investigation commenced on January 3, 2018, less than thirty (30) days of the incident having occurred. On January 9, 2018, also less than thirty (30) days from the incident, CCRB served a records request upon Respondent City's police department for use in investigation into Petitioners' misconduct allegations. See Exhibit 3.
17. In early 2018, Petitioners Isaac Okoli and/or Millycent Atuegwu took steps so that their minor children would obtain counselling to address psychological disturbance caused thereby (and which Petitioner G.O. specifically did in fact receive), continued to fulfill their duties as parents of three minor children, continued to work, took time to formally complain and sit for related investigative interviews regarding the incident, and took time to seek legal counsel (which they did not have at the time they complained of the incident and sat for related interviews with investigators).
18. On or about April 24, 2018, Petitioners retained the undersigned to file a Notice of Claim relating to the December 12, 2017.

19. On or about April 26, 2018, the undersigned, through Of-Counsel Agreement with Ryan Lozar, Esq., served a FOIL request for related records from the NYPD and also the Queens County DA's Office. This was just over 120 days from the date of the incident, and just over 90 days from the Queens DA's Office's dismissal of the arrest charges. See Exhibit 4 (true and accurate copies of the NYPD FOIL with SSN and certain DOB information redacted); Exhibit 5 (true and accurate copies of the Queens County DA's Office FOIL with SSN and certain DOB information redacted); see Exhibit 1 (copy of January 16, 2018, dismissal letter).
20. As of June 4, 2018, the NYPD and the Queens County DA's Office FOIL have not yet delivered FOIL responses to Mr. Lozar or the undersigned (I have verified this fact with Mr. Lozar). The undersigned had hoped to include relevant documents from the FOIL responses with this Petition, and will supplement the same in the event they are received by the time of related court appearance.

LAW AND ARGUMENT

21. General Municipal Law Section 50-e(5) states in relevant part that the Court may in its discretion grant Petitioners leave to file a late Notice of Claim. "The statutory amendments to subdivision 5 of Section 50-e of the General Municipal Law are to be liberally construed." Matter of Reisse v. Cty. of Nassau, 141 A.D.2d 649, 651 (NY App. Div. 1988)). The General Municipal Law, as amended, is to permit the judiciary to be flexible, to consider all relevant factors,

and to exercise considerable judicial discretion in determining whether to permit service of a late Notice of Claim. Matter of Lucas v. City of NY, 91 A.D.2d 637 (2d Dep't 1982).

22. “A court, after considering all of the relevant facts and circumstances presented to it, has the discretion to extend the time to serve a Notice of Claim. One of the factors that should be accorded great weight is whether the City of New York received actual knowledge of the facts constituting the claim in a timely manner.” Matter of Canty v. City of NY, 273 A.D.2d 467 (2d Dep't 2000). Others include whether the movant petitioners have a reasonable excuse for the delay, and whether the respondents would suffer substantial prejudice if the court were to permit late service of the NOC. Acosta v. City of NY, 39 A.D.3d 629 (2d Dep't 2007). No one factor is dispositive, and the absence of reasonable excuse is not necessarily fatal. Nardi v. Cty of Nassau, 18 A.D.3d 520 (2d Dep't 2006).

23. Where a Petitioner has presented facts to demonstrate that the public corporation will not be prejudiced by the granting of leave to file a Late Notice of Claim, the burden then shifts to the public agency to demonstrate to the contrary. See Matter of Newcomb v Middle Country Cent. Sch. Dist. 2016 NY Slip Op 08581(2016).

The Court of Appeals explained in its holding that:

The rule we endorse today — requiring a petitioner to make an initial showing that the public corporation will not be substantially prejudiced and then requiring the public corporation to rebut that showing with particularized evidence — strikes a fair balance. We recognize that a petitioner seeking to excuse the failure to timely comply with the notice requirement should have the initial burden to show that the public corporation will not be substantially prejudiced by the delay. The public corporation, however, is in the best position to know and demonstrate

whether it has been substantially prejudiced by the late notice. We have long held in other contexts that where "the facts are within the defendant's peculiar knowledge, . . . he [or she] should, therefore, prove them" (*Collins v Bennett*, 46 NY 490, 494 [1871]; see *Art Masters Assoc. v United Parcel Serv.*, 77 NY2d 200, 215 (1990) (noting that "(i)t is a legal commonplace that 'if a fact lies peculiarly within the knowledge of a party, that party has the burden of proof with respect to it'" (citation omitted)); see also *Terranova v Emil*, 20 NY2d 493, 497 [1967] [denying summary judgment where knowledge of facts was "peculiarly in the possession of the defendants"]. Requiring the public corporation to come forward with a particularized showing is appropriate in this context given that the public corporation is in the best position to provide evidence as to whether the late notice has substantially prejudiced its ability to defend the claim on the merits.

Id.

24. Here, Petitioners show that the respondent municipality had actual knowledge of the facts constituting the proposed NOC and that, relatedly, it would not be prejudiced—substantially or otherwise—by the late service of the NOC. Among the relevant facts supporting this finding are: (1) CCRB's receipt of Petitioner's complaint regarding the December 12, 2017, incident within 30 days of it having occurred, and CCRB's commencement of relating investigation also within 30 days of the event having occurred; (2) CCRB's request of material NYPD records from the city in connection with the complaint and investigation within forty-five days of the incident having occurred; (3) the Queens DA's Office's dismissal of NYPD's arrest charges within forty-five days of the incident having occurred; (4) one of the Respondent Officer's various contacts with Petitioner Victoria Okoli within ninety days of the incident to apologize and to check on her well-being for having held her at gunpoint during the allegedly unlawful entry and search; and (5) Respondents' actual possession of all relevant police records relating to the incident during the ninety day period while knowing of the

complaint, investigation, and more. Exhibit 3 (a true and accurate copy of CCRB complaint Number 201800067 summary report relating to the December 12, 2017, incident).

25. Taken together, this demonstrates that the respondent municipality would not here suffer any prejudice—substantial or otherwise—should the Court in its discretion permit Petitioners’ late service of the attached NOC. Exhibit 6. In the past, courts have found that similar circumstances—petitioner complaint about a subject incident within ninety days of its occurrence and municipality knowledge of the same while being in possession of relevant records—justified judicial exercise of discretion to permit the petitioner to file a late NOC. See Billone v. Town of Huntington, 188 A.D.2d 526 (2d Dep’t 1992) (affirming lower court’s grant of leave for petitioner to serve late NOC where petitioner’s family member had sent a letter complaining about subject incident to the respondent three weeks after it occurred); Figueroa v. City of NY, 22 Misc.3d 1111(A) (Kings Cty Sup. Ct. 2008) (granting petitioner’s application to have late NOC deemed timely served where, among other things, petitioner’s complaint about the subject incident to IAB was known to municipality within ninety days of the incident and the municipality had related records during that period). Petitioners note that this case is unlike Black v. City of NY, 21 Misc.3d 1121(A) (King Cty. Sup. Ct 2008), where the court held that CCRB complaint alone cannot show respondent notice of a petitioner’s complaint and related investigation within the ninety day period. That is because here, unlike in Black, Petitioners’ evidence demonstrates

specifically that the CCRB complaint and investigation did result in Respondents receipt of notice due to the CCRB's service of NYPD records requests to use in connection with investigation into allegations of incident-related misconduct on or about January 9, 2018, which was less than thirty days from the date of the subject incident. Exhibit 3 at 3.

26. It should be noted that a municipality's substantial prejudice "will not be presumed," and where petitioners make a preliminary showing that no prejudice exists, the burden for showing "substantial prejudice" shifts to the municipality for demonstration to the reviewing court. Santiago v. Cty. of Suffolk, 280 AD2d 594 (2d Dep't 2001); see Simmons v. NYC Hous. Auth., 161 AD2d 377 (1st Dep't 1990) (holding that the municipal corporation failed to demonstrate it would substantial prejudice by the filing of Notice of Claim thirty-eight days past 90-day period).
27. Petitioners' reasonable excuse for their respectful request for late filing includes Petitioner Isaac Okoli's and Petitioner Millycent Atuegwu's demonstrated diligence in seeking to remedy the unlawful law enforcement actions through complaint and participation in investigation during the statutory period, mitigation of their minor childrens' psychological damages during the statutory period through tending to same and securing counseling services for G.O., seeking counsel during the statutory period and obtaining the same very shortly thereafter to permit the above-referenced FOILs and the instant petition, and more. See In re Sokolowski, 173 A.D.2d (1st Dep't 1991) (permitting late NOC

filing where petitioner's error was inadvertent and service of the late NOC occurred within four months of subject incident); Sorrell v. Inc. Village of Lynbrook, 27 Misc. 3d 1026 (Sup. Ct. Nassau Cty 2010) (granting application to serve a late Notice of Claim when uncontroverted allegations "are that the delay in serving the late Notice of Claim was inadvertent and not calculated to mislead or confuse the respondents, that the respondents were aware of the essential facts constituting the claim, and that the respondents will not be substantially prejudiced by granting the application").

28. Petitioners again note that assuming arguendo that the court does not find their excuse for late filing to be reasonable, the reasonable-excuse factor is but one factor for the court to consider and its absence still permits a court in its discretion to allow late filing of late NOC. See Richardson v. NYC Trans. Auth., 210 A.D.2d 38 (1st Dep't 1994) (lack of reasonable excuse "is without significance given the existence of the actual notice and the NYCTLC and City's failure to show substantial prejudice by the late notice"); Justiano v. NYC Housing Auth. Police, 191 A.D.2d 252 (1st Dep't 1993) (noting absence of reasonable excuse not fatal to late NOC service petition).

CONCLUSION

29. As detailed supra, there are various facts showing that despite Petitioners' service of the proposed NOC outside of the ninety-day period, Respondents had actual knowledge and possession of all relevant facts within that ninety-day period, as well as notice of Petitioners' complaint and related investigation into

the subject incident. As a result, Petitioners respectfully submit that

Respondents would suffer no prejudice—substantial or otherwise—if the Court were to permit the late service of their NOC appearing at Exhibit 6.

30. In addition, Petitioners respectfully claim reasonable excuse in their service of the NOC outside the ninety day period as shown by their diligence in addressing the various practical consequences of the incident for their children, making formal complaint and participating in related investigation into the subject incident, and seeking counsel to help them, all while continuing to meet their pre-existing parental and professional obligations.
31. Further, Petitioners' instant petition is made within the one-year and ninety-day statute of limitations for filing a related tort action. See Mazzilli v. City of NY, 115 A.D.2d 604 (2d Dep't 1985) (late-NOC-service petition must be made within broader one-year-and-ninety-day statute of limitations period).
32. Accordingly, in light of the above, Petitioners respectfully ask that the Court deem the previously served NOC as timely made.
33. No previous application for the herein requested relief has been made.

WHEREFORE, your Affirmant respectfully requests that the Court grant the requested relief in its entirety.

DATED: New York, NY
June 14, 2018

Attorney for Petitioners:



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